



ONTARIO LABOUR RELATIONS BOARD

Application for Review *Employment Standards Act, 2000* *Protecting Child Performers Act, 2015*

Form A-103

Fields marked with an asterisk (*) are mandatory.

- Review Information Bulletin No. 24 – “Applications for Review under the *Employment Standards Act, 2000*”, the Filing Guide and the Board’s Rules of Procedure on acceptable methods of delivery **before** completing this form to avoid any delay in processing.
- All forms, Notices, Information Bulletins, the Filing Guide and the Rules of Procedure may be obtained from the Board’s website (<http://www.olrb.gov.on.ca>).
- You must **deliver** the application and other documents to the **Director of Employment Standards** and the other workplace party(ies), before filing it with the Ontario Labour Relations Board.
- Delivering a copy of the Application for Review to the Director of Employment Standards is **NOT** the same as filing it with the Ontario Labour Relations Board. You must do both.
- An Application may be filed with the Ontario Labour Relations Board either electronically or at:
Ontario Labour Relations Board
505 University Avenue, 2nd Floor
Toronto, ON M5G 2P1
- To print a paper copy of this form, use **only** the “Print” buttons located within the form.
- Save a copy of your completed form and any attachments as the Board will not return them to you. To save the form at any time, use the “Save” buttons located within the form.
- If there is insufficient space on the form, attach additional pages clearly identifying the relevant section of the form. For e-filing, you may attach files by selecting the “Attach documents electronically” option.

Part A Who is Applying for Review?

Select at least one of the following: * (Note: If you are an Employer seeking to review an Order **and** a Notice of Contravention, select two of the following check boxes.)

☐ I am an **EMPLOYEE** who objects to and seeks review of an Employment Standards Officer’s Order or refusal to issue an Order.

☐ I am an **EMPLOYER** or **TEMPORARY HELP AGENCY** or **CLIENT OF A TEMPORARY HELP AGENCY** who objects to and seeks review of an Employment Standards Officer’s Order.

This form will **NOT** be processed unless you certify, in Part E below, that payment has been made to the Director of Employment Standards (who will hold the money in trust until the matter is determined by the Board) or an irrevocable letter of credit has been provided to the Director of Employment Standards.

☐ I am a **DIRECTOR** of an employer corporation who objects to and seeks review of an Employment Standards Officer’s Order made against me personally.

Applying for a review of an Order against a Director will **NOT** be processed as an application for review of an Order against an Employer. If you are also applying for review of an Order against an Employer, you must also select that option and certify that payment has been made to the Director of Employment Standards.

☐ I am a **PERSON** who objects to and seeks review of a **Notice of Contravention** issued against me.

Part B Contact Information

Instructions

- Provide contact information for the parties identified below. If you wish to add additional parties, use the “Add” button or attach a separate page if completing the form by hand.
- If a party is an organization, provide the name and contact information of an individual who will be able to respond on behalf of that organization. When adding multiple individuals at the same organization, “Add” an additional contact section, repeat the organization name and provide that individual’s contact information (e.g. name, email address, phone number).

1 (a). Party Applying for Review

You must notify the Ontario Labour Relations Board **immediately** of any change in your address, phone number, fax number or email address. **If you fail to notify the Board of any changes, correspondence sent to your last known address or email address may be deemed to be reasonable notice to you and the application may proceed in your absence.**

Applicant 1

Type * ☐ Organization ☐ Individual

Organization Name

First Name		Last Name		Position/Title	
Full Address (Number, Street, Unit/Apartment, Building Name)				Other Address Details (e.g. PO Box, R.R. #, c/o)	
City/Town		Province/State		Country	
				Postal/Zip Code	
Telephone Number		Ext.		Fax Number	
				Email Address	

Additional Contact Information, if any (Assistant's Email Address, Alternate Telephone Numbers)

1 (b). Representative/Contact Person for the Party Filing the Application for Review

2 (a). Other Workplace Party/Parties

If you are an **EMPLOYEE**, provide contact information for the employer(s), temporary help agency or client of the temporary help agency.

If you are an **EMPLOYER** or **TEMPORARY HELP AGENCY** or **CLIENT OF A TEMPORARY HELP AGENCY**, provide contact information for each affected employee/claimant.

If you are a **DIRECTOR** of an employer corporation, provide contact information for each employer, affected employee/claimant and all of the other directors.

Party 1

Type * ☐ Organization ☐ Individual

Organization Name

First Name		Last Name		Position/Title	
Full Address (Number, Street, Unit/Apartment, Building Name)				Other Address Details (e.g. PO Box, R.R. #, c/o)	

City/Town		Province/State	Country	Postal/Zip Code
Telephone Number	Ext.	Fax Number	Email Address	

Additional Contact Information, if any (Assistant's Email Address, Alternate Telephone Numbers)

2 (b). Representative/Contact Person for the Other Workplace Party/Parties, if known

Note: The Director of Employment Standards is a party to every application for review and you must deliver the application to the Director.

Part C Identification of Order To Be Reviewed

3. Employment Practices Branch File Number (or ES Number): _____

4. I am seeking review of:

☐ A refusal to issue an Order

OR

☐ Order/Notice Number(s):

List each orders you are seeking to review.

You must include the Order/Notice of Contravention number for each Order/Notice of Contravention you are seeking to review.

Note: Failure to clearly identify each Order/Notice in the application may result in a Board determination that you have not sought to review that Order/Notice in a timely way.

5. I am attaching the following documents with this application:

(check all that apply)

- ☐ A copy of the Employment Standards Officer's Reasons for Decision
- ☐ A copy of the Order(s)
- ☐ A copy of the Employment Standards Officer's letter advising the employee of the Order
- ☐ A copy of the Employment Standards Officer's letter advising of the refusal to issue an Order
- ☐ A copy of the Notice(s) of Contravention
- ☐ A copy of proof of payment to the Director of Employment Standards

You must ensure that the documents attached include copies of each Order/Notice you are seeking to review. Failure to do so, will result in a delay in processing your application.

If there are relevant documents listed above that you are not attaching, provide an explanation as to why the documents are not attached:

Part D Timeliness

6. Date of Service of Order/Notice/Letter (as applicable): _____

7. This application for review:

☐ is ☐ is not

being filed within 30 calendar days after the day on which the Order, Notice, Letter advising of the Order, or Letter advising of the refusal to issue an Order, as the case may be, was served or was deemed to have been served.

If your application is being filed after the 30 calendar day time limit, state all of your reasons why an extension of time should be granted by the Board:

If you require more space, attach a separate document.

Part E Proof of Payment

Complete this section only if you are an **EMPLOYER** or **TEMPORARY HELP AGENCY** or **CLIENT OF A TEMPORARY HELP AGENCY** applying for review.

Your application will not be processed without a copy of your proof of payment to the Director of Employment Standards.

8. Select from the following:

(a) If you are applying to review an Order to Pay (s.103 of the ESA):

☐ I certify that I have paid the full amount owing under the Order to the Director of Employment Standards in trust or provided the Director with an irrevocable letter of credit acceptable to the Director in that amount. A copy of proof of payment is attached.

AND/OR

(b) If you are applying to review an Order for Compensation and/or Reinstatement (s. 104 of the ESA):

☐ I certify that I have paid the amount owing under the Order or \$10,000 (whichever is less) to the Director of Employment Standards in trust or provided the Director with an irrevocable letter of credit acceptable to the Director in that amount. A copy of proof of payment is attached.

Part F Remedy Requested and Material Facts

Note: The Board **does not** review the conduct of and/or investigation by the Employment Standards Officer in coming to its decision. The Board starts its hearing with a “clean slate” in order to make its determination.

9. What remedies are you asking the Ontario Labour Relations Board to order?

If you require more space, attach a separate document.

10. In support of this request, what material facts are you relying on?

Include a detailed statement of the facts and events upon which you rely to support your position. If you require more space, attach a separate document.

11. Attached documents:

Provide a list of the documents you are filing together with this form as instructed below.

Name your documents/attachments so that they are easily identifiable.

If you are e-filing this form, select the “Attach documents electronically” option below and attach each document using the “Add File” button.

If you are filing in a manner other than e-filing, provide the numbered list of documents in the box below.

Documents

IMPORTANT NOTES

The Board's forms, Notices, Information Bulletins, Rules of Procedure and Filing Guide may be obtained from its website <http://www.olrb.gov.on.ca> or by calling 416-326-7500 or toll-free at 1-877-339-3335.

FRENCH OR ENGLISH

Vous avez le droit de communiquer et recevoir des services en français et en anglais. La Commission n'offre pas de services d'interprétation dans les langues autres que le français et l'anglais.

You have the right to communicate and receive services in either English or French. The Board does not provide translation services in languages other than English or French.

CHANGE OF CONTACT INFORMATION

Notify the Board immediately of any change in your contact information. If you fail to do so, correspondence sent to your last known address (including email) may be deemed to be reasonable notice to you and the case may proceed in your absence.

ACCESSIBILITY AND ACCOMMODATION

The Board is committed to providing an inclusive and accessible environment in which all members of the public have equitable access to our services. We will aim to meet our obligations under the *Accessibility for Ontarians with Disabilities Act* in a timely manner. Please advise the Board if you require any accommodation to meet your individual needs. The Board's Accessibility Policy can be found on its website.

COLLECTION AND DISCLOSURE OF INFORMATION AND DOCUMENTS

Any relevant information that you provide to the Board must in the normal course be provided to the other parties to the proceeding. Personal information collected on this form and in written or oral submissions may be used and disclosed for the proper administration of the Board's governing legislation and case processing. In addition, the *Tribunal Adjudicative Records Act, 2019* requires that the Board make adjudicative records (which include applications filed and a listing of such applications) available to the public. The Board has the power to make part or all of an adjudicative record confidential. The *Freedom of Information and Protection of Privacy Act* may also address the treatment of personal information. More information is available on the Board's website www.olrb.gov.on.ca. If you have any questions concerning the collection of information or disclosure of adjudicative records, contact the Solicitors' Office at the number listed above or in writing to the OLRB, 505 University Ave., 2nd floor, Toronto, ON M5G 2P1.

E-FILING AND E-MAIL

The Rules of Procedure and Filing Guide set out the permitted methods of filing. **In the event of emergencies or other circumstances, the Board may post a Notice to Community on its website, which will prevail over the Rules of Procedure and Filing Guide. You should check the Board's website prior to filing.** Note that the e-filing system is not encrypted. Contact the Client Services Coordinator at the numbers listed above if you have questions regarding e-filing or other filing methods. If you provide an e-mail address with your contact information, the Board will in most cases communicate with you by e-mail from an out-going only generic account. Incoming emails are not permitted.

HEARINGS AND DECISIONS

Hearings are open to the public unless the Board decides that matters involving public security may be disclosed or if it believes that disclosure of financial or personal matters would be damaging to any of the parties. Hearings are not recorded and no transcripts are produced.

The Board issues written decisions, which may include the name and personal information about persons appearing before it. Decisions are available to the public from a variety of sources including the Ontario Workplace Tribunals Library and www.canlii.org. Some summaries and decisions may be found on the Board's website.

Documents to be Delivered

Before filing your Application for Review with the Board, you must deliver it, including all documents you are filing with the form, to each party named in Part B of this application **and** to the Director of Employment Standards.

Delivery must be made to the Director of Employment Standards by one of the following methods:

REGULAR MAIL OR HAND DELIVERY:

Director of Employment Standards
Employment Practices Branch
400 University Avenue, 9th Floor
Toronto, ON M7A 1T7

EMAIL: appforreview.directorofES@ontario.ca

OR FAX: 1-855-251-5025

Note to each party listed in Part B of this application: The documents listed above should have been delivered to you by the Applicant.

Once the above-listed documents have been delivered to the other parties, you have five days to complete the following Certificate of Delivery and file the completed form and attachments with the Board.

☐ I have reviewed this form to confirm it is complete *

Date (yyyy/mm/dd) *

Certificate of Delivery

I, _____, _____,
Name * Title

certify that the documents identified above were delivered to each of the parties as set out below:

Delivered To: Director of Employment Standards

Address, Email Address or fax number to which the documents were delivered *

Address: Director of Employment Standards
Employment Practices Branch
400 University Avenue, 9th Floor
Toronto, ON M7A 1T4

Email: appforreview.directorofES@ontario.ca

Fax: 1-855-251-5025

Method of delivery *

☐ Hand Delivered ☐ Courier ☐ Fax ☐ Regular Mail ☐ Email

Do you also certify that this application was delivered to other workplace parties named in Part B? * ☐ Yes ☐ No

File with the Board

- File the completed form and any attachments using a method permitted by the Board's Rules of Procedure.
- Save and Print a copy of your completed form and all attachments as the Board will not return them to you.
- To e-file, click the "Submit" button below. You will receive a confirmation email once the form has been successfully submitted.
- If you choose not to e-file, print this form by clicking on the "Print" button below and then file with the Board together with any attachments.

For E-Filing only

You must provide a valid email address in order to file this form electronically so that a confirmation email may be sent to you. If you do not have a valid email address, file a paper copy of this form using an alternative method permitted by the Board's Rules of Procedure.

Submitted By:

First Name *

Last Name *

Email Address *

Confirm Email Address *